

nies and goods and service.

The relevant legislation is the Consumer Protection Act, 1986, together with several amendments (see: http://ncdrc.nic.in/1_1.html). The language used in a legislation like this makes for pretty heavy reading, and so I shall not quote from it extensively. However, one of the key points is that the consumer is protected from goods having any “fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained by or under any law for the time being in force under any contract, express or implied or as is claimed by the trader in any manner whatsoever in relation to any goods”. Services are also covered.

There is also mention in the Act of protection regarding unfair trade practices, pricing and other issues, but the key point is that you are guaranteed redress, if something you purchase doesn’t meet proper expectations – even if there is no warranty or the warranty has expired. For example, in an extreme case, if

The case of a faulty monitor

One reader contacted us after her business monitor from ViewSonic failed while still under warranty. She told us that the company took six days to visit, but were unable to fix the monitor immediately. No replacement was offered, and time dragged on. After three weeks without a working monitor, and several calls to ViewSonic, she wrote to *Digit*. We, in turn, contacted ViewSonic. The company acted very quickly, and within a couple of days our reader had a new monitor.

So, what had gone wrong, if anything? We spoke to Mr. Neeraj Verma, Customer Service Manager for ViewSonic India. He told us that one problem with this case had been the fact that the particular model of monitor concerned was “End-of-Life.” This means that the company no longer sells it, or are just selling off the last ones, and so they are running down the stock of spare parts, etc., making it difficult to repair. This is clearly true, as the replacement monitor that has been delivered to our reader is a more recent model.

The other main problem was that two components were faulty in this particular device, and this was not realised when the monitor was first inspected.

Mr. Verma told us that the company usually manages to fix customer problems within five days, sometimes in just one or two days. So, judging by ViewSonic’s own standards, this particular reader was not treated well, having been without a working monitor for over three weeks.

One point Mr. Verma made that echoed comments from the Department of Consumer Affairs was to ask that customers check their facts fully before making a complaint. Check your warranty and terms and conditions – the ViewSonic web site has some information on this – and make sure you have a valid complaint first. He said that there are a significant number of false complaints that are made, and that these slow down the process of fixing genuine ones.

In summary, this was perhaps a more difficult case than normal for ViewSonic, and the company did act quickly after we contacted them, but it seems wrong to leave a customer without a working system for so long.

you purchase a printer, and only try to use one particular function that is described in the documentation a few days after the warranty expires, and find that it fails, you have a very good case for replacement if it can be shown that this has not come about by normal wear and tear. This function may not have been mentioned when you purchased the printer, but it is common in printers and is clearly documented – it is therefore a quality which was implied when you made the purchase, to use the language as given in the quote above.

If you are faced with a situation like this, and the vendor refuses promptly either to repair or replace the goods, or give you your money back, the first thing to do is to make it clear that you are fully aware of your rights under the law, and you are quite willing to use the law to seek redress. You should, of course, make sure in the first place that you have a genuine case, by reading carefully the warranty and any terms and conditions that might apply.

If this does not work, and the vendor is not addressing your complaint properly, what should you do next? I put this question to the Department of Consumer Affairs’ Mr. Sreekumaran. He suggested that the first step should be to call the National Consumer Helpline, on 1800-11-4000.

There are basically two levels of help that you might receive. The first one concerns companies that have joined the curiously named Convergence Process with the Helpline. Currently there are about 150 such companies, and they include some names that will be familiar to *Digit* readers, such as Airtel, Reliance, Acer, BPL Sanyo, Hitachi, Lenovo, LG, Motorola, Nokia, Philips, Samsung, Sansui, Sharp, Sony and Sony Ericsson. The list from which these names have been taken is at least two months old and more have recently joined.

If a complaint comes in to the Helpline regarding one of these companies, the details are immediately sent electronically to the concerned department in the respective company. These companies have all stated that they will act promptly on the complaints they receive, and give feedback to both the aggrieved consumer and to the Helpline. If this scheme works as described, then the more companies sign up, the better. If any of you do happen to use the Helpline, do let us know results you obtain, either to the email address given above, or through the forums on thinkdigit.com.

If the company with which you have a complaint has not joined the Convergence Process, the level of help you get will vary. The helpline will do its best to help, advising you who to contact in the company and how to approach the problem.

According to Mr. Sreekumaran, with these

cases, the resolution of complaints runs at about 14 per cent, but with those companies in the Convergence Process, it is around 50 per cent. The main reason for the 50 per cent figure is that many complaints turn out not to be valid. With the 14 per cent figure, however, there are also many companies that simply do not comply. It is then that a consumer will need to turn to the courts.

The court structure that has been set up under the provisions of the Consumer Protection Act is a three-tier system, with District Forums at a local level, State Commissions at the state level, and the National Commission for the country as a whole (with the exception of Jammu and Kashmir). These courts attempt to resolve all disputes within a 90-day period. However, in practice, this usually does not work out. The company against which the complaint is made has to be given time to investigate the complaint and arrange any defence – this usually takes the process over the 90-day period.

These courts are under the umbrella of the National Consumer Disputes Redressal Commission (see: ncdrc.nic.in). Action through these courts is clearly a last resort, and the government intends to set up a system of conciliation and mediation that consumers could use instead of going to the courts. This will be along the lines of the UK’s Consumer Direct Service, a government funded service for information and advice on consumer issues. That organisation’s web site states that it “will recommend a clear course of action to follow”, but, “cannot intervene directly in consumer matters, such as taking action against a trader.” I get the sense that the Indian equivalent will perhaps have a few more teeth than the UK original. Let’s hope so.

A free market is supposed to work by the law of supply and demand – notice that second word. The market can only supply what consumers demand, and if we are undemanding – not just of the products we need, but also of the quality that we expect and the service that we deserve – then we should not be surprised to receive poor treatment. So, if you are treated badly by a company, make sure your complaint is genuine, acquaint yourself properly with the law and your rights, and press your complaint vigorously; if necessary, with the help of the National Consumer Helpline.

Everybody benefits. Not just you if you end up getting your printer or ‘phone fixed, but the industry as a whole, because complaints tend to push companies to providing better products and services which in turn means that their customers are more likely to return to them and purchase more. And the offer still stands to let *Digit* know of serious problems and we will contact the company concerned on your behalf: servicewatch@thinkdigit.com. ☐

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